

cient, it would be necessary in a suit to make the administrators of B. and C. parties as *cestuis que trust*, a thing quite unheard of in practice. In an extreme case, however, where an administrator who was beneficially entitled to one-fourth, filed a bill *one hundred and fifty years* after the intestate's decease, the Court, while it admitted the plaintiff's legal title to the whole, refused to order payment to him of the other three-fourths, which apparently belonged in equity to other parties (a).

ζ. **Sale by banker by direction of executor.**—An *agent* is accountable to his principal only, and therefore if an executor employ a banker to sell out part of the testator's stock and remit the proceeds to him, it seems the banker, though he has reason to believe that a misapplication is intended, is bound to transfer the money to the executor, and does not thereby render himself accountable. A contrary doctrine would carry the principle of constructive trust to an inconvenient and, indeed, to an impracticable length (b); [and

(a) *Loy v. Duckett*, Cr. & Ph. 305. [In a recent case, in 1885, where stock standing in the name of an owner, who died in 1791, had been transferred to the Commissioners for the reduction of the National Debt, and an inquiry was directed upon petition who were the persons entitled to the fund, the Court directed that the beneficial title should be inquired into as regarded all the shares to which the legal personal representatives of persons who died before 1871 were entitled; *Ex parte Roskrow*, W. N. 1885, p. 3.]

(b) *Keane v. Robarts*, 4 Mad. 332, see 356, 359; and see *Davis v. Spurling*, 1 R. & M. 64; S. C. Taml. 199; *London Chartered Bank of Australia v. Lempriere*, 4 L. R. P. C. 585; [*The New Zealand and Australian Land Company v. Watson*, 7 Q. B. D. 374; reversing S. C. 5 Q. B. D. 474;] *Crisp v. Spranger*, Nels. 109; *Saville v. Tancred*, 3 S. W. 141, note; *Ex parte Barnwell*, 6 De G. M. & G. 801; *Gray v. Johnston*, 3 L. R. H. L. 1. In this case, before the House of Lords, the

doctrine as laid down by Lord Cairns was, that on the one hand bankers were not on grounds of mere suspicion or curiosity, to refuse to honour the cheque of an executor or trustee, being their customer, and on the other hand, that bankers were not, under shelter of that title, to be at liberty to become parties or privies to a breach of trust, and to pay away trust money when they *knew* it was going to be misapplied, and for the purpose of its being so misapplied; and he stated the result of the cases to be, that to justify a banker in refusing payment, 1. There must be a misapplication or breach of trust actually intended. 2. The bankers must be privy to such intended misapplication or breach of trust, and 3. That any personal benefit to the bankers designed or stipulated for, would be the strongest evidence of such privy, *Ib.* p. 11. But the principle enunciated by Lord Westbury went further, for he said that a banker could not be allowed to set up the *jus tertii* against the order of his own